but underlined its stated object: to prevent distress sales, not to police religious ratios in neighbourhoods.

The 2026 amendment deletes the terms 'improper clustering' and 'polarisation', replacing them with the broader and arguably vague 'likelihood of communal tension'. The cosmetic rename of 'disturbed' to 'specified' serves the same defensive function of neutralising language that courts had flagged as constitutionally suspect, while keeping the law's operational machinery intact.

It loosens how a triggering cause is defined, making it more hair-trigger. Under the revised Section 3, any area can now be declared a 'specified area', not just where communal violence has occurred, but one that's merely 'likely to become prone' to public order disturbance due to communal tension. 'Aggrieved person', too, is defined very liberally: previously limited to parties in a transaction, now it can include any resident of a specified area. That single change lets neighbours challenge a property sale they have no legal stake in, turning the collector's office into a venue for a community veto.

The collector, in turn, acquires suo motu powers to probe transactions and take physical custody of property without waiting for a complaint. On the bright side, property owners in specified areas can now mortgage their homes for loans.

Imran Khedawala, Gujarat's lone Muslim MLA, calls the amendments political theatre designed to harden communal fault lines ahead of local body polls: 15 of the state's 17 municipal corporations and 84 municipalities vote on April 26, and the expanded Act is expected to be an effective polarising issue, which would have otherwise been a report card of local municipal governance.

FOR NAME'S SAKE

Political observers and sociologists, too, look with scepticism at the official framing of the law as a move for social harmony. They see it as a structural drag on a state trying to sell itself as an international venue, pitching GIFT City as a fintech destination and positioning Ahmedabad as a host of global sporting hub, while that itself became the driving cause. "One possible reason for the nomenclature change from 'disturbed' to 'specified' is that a city with large parts tagged as 'disturbed' cannot be an ideal candidate for international games," says Sharik Laliwala, a scholar at the University of California, Berkeley.

Interweaving layers of state control into property markets, with a perpetual 'law and order' clause hanging over urban spaces, is "instituting market failure", Laliwala argues. "On the ground, it will become a tool of political finance," he says. He places it alongside prohibition as one of the two reasons why companies with large white-collar workforces have steered clear of Gujarat. Reason? Both laws signal the same thing: state control over personal freedom, what you eat or drink, or where one chooses to live. ■

Takeaways

- Amendment to Disturbed Areas Act tweaks key nomenclature
- 'DISTURBED' gets replaced by less troubling, more general 'SPECIFIED'
- Ambit: anytime, not just for riots; any place tagged 'LIKELY TO BE PRONE'
- Anyone in area can be 'AGGRIEVED' by Muslim-Hindu property deal
- Will entrench divide, say critics

▶ BIHAR

SURGICAL

No medical reason, no consent—a



By **Amitabh Srivastava**

"**I AM STILL NOT BACK TO NORMAL LIFE**... the pain hasn't gone," says Anita Devi, 37, her voice strained. Over five months after undergoing surgery on October 10 last year at a private hospital in Patna, she says she continues to suffer pain and debilitating weakness.

In her village, Parmanandpur in Saran district, the day is well under way. But Anita remains on a wooden cot, unable to muster the strength that would ordinarily carry a woman of her age through the ordinary demands of daily life. What she believed was a routine medical procedure has left her in a prolonged limbo of suffering.

Anita was admitted to Evers Hospital in Patna in October for what she believed was a relatively minor ailment, which a previous stay at another private